

1 Negligence is the failure to use reasonable
2 care to prevent harm to one's self or to others.

3 A person can be negligent by acting or by
4 failing to act.

5 A person is negligent if that person does
6 something that a reasonably careful person would not
7 do in the same situation or fails to do something that
8 a reasonably careful person would do in the same
9 situation.

10 You must decide how a reasonably careful
11 person would have acted in Subhi Abdelhalim's
12 situation.

13 Comparative negligence. Subhi Abdelhalim
14 claims that Franciscus Dylan Rosario's own negligence
15 contributed to his harm.

16 To succeed on his claim, Subhi Abdelhalim
17 must prove both of the following:

18 One: That Franciscus Dylan Rosario was
19 negligent.

20 And, Two: That Franciscus Dylan Rosario's
21 negligence was a substantial factor in causing his
22 harm.

23 If Subhi Abdelhalim includes the above,
24 Franciscus Dylan Rosario's damages are reduced by your
25 determination by the percentage of Franciscus Dylan
26 Rosario's responsibility.

27 I will calculate the actual reduction.

28 Presumption of negligence, per se.